

File No.: E/07316/2020

RESOLUTION OF FILE OF ACTIONS

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On February 13, 2020, a complaint was filed with entry registration number 006767/2020 before the Spanish Agency for Data Protection against BANCO SANTANDER, S.A. and A.A.A.

The reasons for the complaint were as follows:

It was stated that the complainant had been subjected to harassment, insults, slander, and an attack on their honor continuously from late December 2018 until February 2019, matters which were reported to the Ertzaintxa and the Court of ***LOCALITY.1.

Within that situation of harassment, it was stated that insulting letters were sent to the homes of their parents, their sister, their own home, the hair salon they frequented, their child's school, and their workplace ***CENTER.1.

It was pointed out that the person committing such acts could only have obtained the personal data and addresses, both their own and those of their family, from the banking entity with which they all worked, BSCH, where their ex-husband worked as an assistant director at one of its branches in ***LOCALITY.2 (located at ***ADDRESS.1).

It was stated that all payments made were done through credit card, with the address of the establishment where the complainant made the expenditure (and which subsequently received one of the aforementioned letters) and the exact address of their child's school was registered.

For all these reasons, it was requested that the corresponding legal responsibilities be clarified, as it is obvious that the person/people who accessed their data used it for the subsequent commission of a crime that is currently under judicial consideration.

A copy of the complaints and extensions filed with the Ertzaintxa on February 13, 2019, as well as the Order of March 13, 2019, issued by the Court of First Instance and Instruction No. 2 of ***LOCALITY.1 in the Preliminary Proceedings ***PROCEEDINGS.1, is provided, including the actions taken.

LEGAL GROUNDS

I

Competence

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In accordance with section 1.f) of Article 57 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these actions.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

Regarding the situation of harassment, insults, and slander, it should be noted that the facts in question were reported to the Basque Autonomous Police, which in turn sent a report to the Court of First Instance and Instruction No. 2 of ***LOCALITY.1 that ordered the appropriate actions to be taken as provided in Article 774 of the Criminal Procedure Law, referring to the possible existence of a crime

of coercion. According to Article 9.3 of Organic Law 6/1985, of July 1, on the Judiciary, the criminal jurisdiction is responsible for the knowledge of criminal cases and trials, and this Agency does not have the authority to resolve criminal matters.

It should also be clarified that we are in the specific area of data protection, which must be distinguished from the protection of the right to honor, which is cited as violated in the complaint filed, since there is a specific procedure for the protection of that right provided in Law 1/1982, on Civil Protection of the Right to Honor, Personal Privacy, and One's Own Image. Therefore, if the complainant believes that this right has been violated, they must assert it before the competent civil jurisdiction.

III

Conclusion

Once the reasons presented by the responding party, which are in the file, have been analyzed, no element has been found that allows us to infer, indicatively, that the alleged transfer or communication of data took place, as there is no element that corroborates the statement of the complainant, which is not accompanied by any evidence.

Regarding the other issues raised, as indicated in Legal Ground II, this Agency does not have the authority to resolve civil or criminal matters, as it can only evaluate strictly what pertains to the observance of the LOPDGDD and the GDPR.

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Thus, in accordance with the aforementioned, it is AGREED by the Director of the Spanish Agency for Data Protection:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to the complaining party.

Against this resolution, which concludes the administrative procedure as provided by art. 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of arts. 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

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